

- 3) Defendants' response thereto shall be filed per Code.
- 4) **The Parties are ORDERED to appear at a Case Management/Trial Setting Conference on Thursday, May 14, 2026, at 8:30 a.m., in Department 32**, to discuss the resetting of trial. Each party is ordered to file and serve an updated Case Management Conference Statement 15 days in advance of May 14, 2026.

**9. 9:00 AM CASE NUMBER: C24-03360**  
**CASE NAME: LISA LOPEZ VS. PETER DEMPSEY**  
**HEARING ON DEMURRER TO: ANSWER**  
**FILED BY: LOPEZ, LISA**  
**\*TENTATIVE RULING:\***

Notice of Settlement of Entire Case filed. Hearing vacated.

**10. 9:00 AM CASE NUMBER: C25-00983**  
**CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER**  
**HEARING ON DEMURRER TO: CROSS COMPLAINT**  
**FILED BY: KELLY, DARCELL**  
**\*TENTATIVE RULING:\***

Plaintiff and cross-defendant Darcell Kelly a.k.a. Darcell Purefoy ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Eddie Drummer ("Cross-Complainant").

Cross-Defendant argues that that Cross-Complainant has failed to plead sufficient facts to support any of their causes of action, that all the causes of action are time barred, and that the first cause of action for breach of contract is barred by the statute of frauds. (Demurrer, pp. 1-2.) Cross-Defendant asks the Court to sustain their demurrer in its entirety, without leave to amend. (Demurrer MPA, p. 9.)

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (Code Civ. Proc. (CCP), §472b; California Rules of Court (CRC), rule 3.1320(g).)

#### **Meet and Confer**

The meet and confer requirement has been satisfied. (Christopher B. Lewis Decl. ISO Demurrer, ¶¶ 4-7; CCP, § 430.41.)

#### **Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged."

(*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

### **Procedural Background**

As alleged by Cross-Complainant, in April 2019, Cross-Complainant and Cross-Defendant agreed that Cross-Defendant would provide assistance to Cross-Complainant by helping him acquire financing to buy real property at 1748 Landana Drive, in Concord, California (the “Property”), by being listed as a buyer and owner in joint tenancy of the Property, despite not having any actual interest in the Property. (Cross-Complaint, ¶ BC-1.) Cross-Complainant would live in the Property and be responsible for the mortgage payment, taxes and insurance. (*Ibid.*) Around February 25, 2023, Cross-Defendant demanded that Cross-Complainant obtain a mortgage for the Property in their own name and remove her name from the deed and the loan. (Cross-Complaint, ¶ BC-2.) Cross-Complainant refused to comply with Cross-Defendant’s demand.

On April 8, 2025, Cross-Defendant filed the instant lawsuit seeking a partition by sale of the Property and claiming that she is entitled to 50% of the current net value of the Property. In the complaint, Cross-Defendant alleges that a grant deed transferring the Property to her as a joint tenant was recorded on April 23, 2019. She also alleges that around February 25, 2023, she “requested by a written demand that [Cross-Complainant] either (1) obtain a mortgage for the property that removes [her] name from the loan and deed; (2) sell the property and divide the net proceeds equally; or (3) go to court and have a partition order granted by the judge for a forced dissolution of the joint tenancy. In response to this written demand, [Cross-Complainant] has repeatedly stated that he would not sell the property and has threatened the life of [Cross-Defendant] and her son in response.” (Complaint, ¶ 15.)

On September 11, 2025, Cross-Complainant filed the Cross-Complaint at issue, alleging causes of action for breach of contract, fraud, and unjust enrichment.

### **Discussion**

#### **Breach of Contract: First Cause of Action**

Cross-Defendant argues that Cross-Complainant’s first cause of action for breach of contract fails because the Cross-Complaint does not properly allege a contract, fails to plead all the requisite elements, and is barred by the statute of frauds. (Demurrer MPA, pp. 4:10-7:22.)

*Oral, Written, or Implied by Conduct*

Cross-Defendant argues that the Cross-Complaint does not properly allege a contract “because it does not allege whether the purported contract was oral or written.” (Demurrer MPA, p. 5:2-3.) Cross-Complainant concedes this point in the opposition. (Opposition, p. 5:2-3 [“Plaintiff concedes that the cause of action does not state whether the contract was oral or written.”].)

A “complaint must indicate on its face whether the contract is written, oral, or implied by conduct.” (*Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458-459.) Failure to do so leaves a complaint or cross-complaint subject to being challenged by a demurrer. (CCP, § 430.30, subd. (g).)

The Cross-Complaint here was submitted on the Judicial Council form PLD-C-001. On the page alleging breach of contract, Cross-Complainant checked the checkbox to indicate the contract was “oral.” (Cross-Complaint, p. 3, ¶ BC-1.) Cross-Complainant’s concession notwithstanding, the Court will overrule Cross-Defendant’s argument on this issue.

#### *Elements for Breach of Contract Claim*

“The standard elements of a claim for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom. [Citation.]’ ” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) With respect to pleading “the contract,” this entails “setting forth the elements of a contract under Civil Code section 1550: ‘(1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) sufficient cause or consideration.’ ” (*O’Byrne v. Santa Monica-UCLA Medical Center* (2001) 94 Cal.App.4th 797, 806-807.)

Cross-Defendant argues that this cause of action “fails to properly allege that a contract existed at all because there is insufficient allegations plead to demonstrate that any consideration, much less whether it was bargained for in exchange for Purefoy’s alleged agreement to ‘provide assistance to plaintiff in the acquiring of financing so that plaintiff could purchase the property’ was ever exchanged.” (Demurrer MPA, p. 6:4-8.) Cross-Complainant’s opposition is silent on what consideration supported the alleged contract. (Opposition, pp. 2:25-5:6.)

The Cross-Complaint alleges that “[w]hen the subject property at 1748 Landana Drive, Concord, CA was acquired, it was agreed that the cross-defendant’s sole interest in the property was to provide assistance to the plaintiff in acquiring financing so that plaintiff could purchase the property. As such, it was further agreed that cross-defendant would have no title interest in the property & that plaintiff would live in the property with the sole responsibility to pay the mortgage payment, taxes and insurance.” (Cross-Complaint, ¶ BC-1.)

The Court agrees with Cross-Defendant that the Cross-Complaint does not properly allege consideration. Section 1605 of the Civil Code provides the definition of consideration, which is “[a]ny benefit conferred, or agreed to be conferred, upon the promisor, by any other person, to which the promisor is not lawfully entitled, or any prejudice suffered, or agreed to be suffered, by such person, other than such as he is at the time of consent lawfully bound to suffer, as an inducement to the promisor, is a good consideration for a promise.” (Civ. Code, § 1605.) Here, the bargained for exchange, i.e., what Cross-Defendant sought from Cross-Complainant, is not alleged in the Cross-

## Complaint.

Additionally, the Cross-Complaint (PLD-C-001 for breach of contract) has a portion that states, “agreement was made between (name parties to agreement)” and Cross-Complainant only listed the Cross-Defendant. (Cross-Complaint, ¶ BC-1.) It is not possible for the Cross-Defendant to have entered into a contract with herself and Cross-Complainant must clean up the breach of contract allegations in order to properly state a claim.

As a result of the above analysis, the Court sustains the demurrer to the first cause of action for breach of contract, with leave to amend, for failing to properly plead the requisite elements of a breach of contract claim.

### *Statute of Frauds*

Cross-Defendant argues that the cause of action for breach of contract also fails because it is barred by the statute of frauds. The statute of frauds provides that certain contracts are invalid unless they are in writing and signed by the party to be charged. (Civil Code, § 1624.) In order to properly analyze the statute of frauds, a contract is required. Here, as discussed above, Cross-Complainant has failed to state a claim for breach of contract—thus, the Court is unable to rule on the statute of frauds argument.

### Sufficiency of Fraud Allegations: Second Cause of Action

Cross-Defendant argues that Cross-Complainant’s second cause of action for fraud fails to properly allege all the requisite elements. (Demurrer MPA, pp. 7:23-8:16; Reply, pp. 5:25-6:24.) Cross-Complainant alleges three variations of fraud: intentional misrepresentation; concealment; and promise without intent to perform. (Cross-Complaint, pp. 4-5, ¶¶ FR-1 – FR-7.)

“The elements of fraud are ‘ (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” ’ ’ ’ (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Further, fraud must be pled with particularity. (Hills Transportation Co. v. Southwest Forest Ind., Inc. (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

In support of the intentional misrepresentation claim (Civil Code, § 1710, subd. 1), Cross-Complainant alleges “that when the subject property @ 1748 Landana Drive, Concord, CA was acquired, she represented that her sole role in the purchase was to provide assistance so that plaintiff could qualify for a loan to acquire the property and that despite the fact that she was a joint tenant on the record of title, in truth and in fact, the plaintiff was intended to be the sole owner. As such, it was further agreed that the plaintiff would live on the property and pay all of the mortgage, insurance, taxes and improvements, which plaintiff has.” (Cross-Complaint, ¶ FR-2a.) Cross-Complainant further alleges “That cross-defendant Kelly made the above misrepresentations so that she could acquire a joint tenancy interest in the property, which she acquired by deed on April 23, 2019. As evidenced by a written demand on or about February 25, 2023, cross-defendant demanded that plaintiff sell the property and give her 50% of the net proceeds. When plaintiff refused, cross-defendant filed the

subject partition action falsely claiming her title interest in the property.” (Cross-Complaint, ¶ FR-2b.) The allegations that Cross-Defendant knew the representations were false and intended to induce Cross-Complainant to act, as well as justifiable reliance, are found at paragraphs FR-2c. to FR-2d of the Cross-Complaint.

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.) In support of his concealment claim (Civil Code, § 1710, subd. 3), Cross-Complainant alleges that Cross-Defendant concealed “that she would claim a 50% interest in the subject property despite her representations that the Plaintiff was the sole owner of the property.” (Cross-Complaint, ¶ FR-3a.) Cross-Complainant also alleges that the concealment occurred by stating certain facts to mislead and prevent Cross-Complainant from discovering the concealed facts, and that Cross-Defendant concealed the facts with an intent to defraud and induce Cross-Complainant to act. (Cross-Complaint, ¶ FR-3b-c.) Cross-Complainant also alleges that he was unaware of the concealed facts and would not have taken the action he did had he known the facts. (*Id.* at ¶ FR-3c.) The Cross-Complaint fails to specify what “certain facts” were stated, by whom they were stated, to whom they were stated, or when they were stated to mislead and prevent Cross-Complainant from discovering the concealed facts.

“To maintain an action for deceit based on a false promise, one must specifically allege and prove, among other things, that the promisor did not intend to perform at the time he or she made the promise and that it was intended to deceive or induce the promisee to do or not do a particular thing.” (*Building Permit Consultants, Inc. v. Mazur* (2004) 122 Cal.App.4th 1400, 1414.) In support of the promise without intent to perform claim (Civil Code, § 1710, subd. 4), Cross-Complainant alleges that “Cross-defendant Kelly promised to plaintiff that despite the fact that the grant deed on April 23, 2019 on the subject property listed her as a joint tenant she would not assert or claim any title interest in the property and that her sole role in the acquiring of the property was to insure that plaintiff could qualify for the mortgage on the property.” (Cross-Complaint, ¶ FR-4.) These allegations suffer from a lack of specificity similar to what has been described above: when was the promise made, what facts show that the promise was made with an intent to deceive or induce the promisee to do or not do a particular thing?

Here, the Cross-Complainant’s intentional misrepresentation, concealment, and promissory fraud claims are insufficiently pled because the Cross-Complaint does not allege facts to show where the fraud occurred (concealment, intentional misrepresentation, and promise without intent to perform) or by what means the representations were rendered (intentional misrepresentation and promise without intent to perform). (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Thus, the Court sustains Cross-Defendant’s demurrer to the fraud cause of action, with leave to amend.

#### Unjust Enrichment: Third Cause of Action

Cross-Defendant argues that in this claim fails because “the facts and filings in this matter clearly

show that [Cross-Defendant] has not been enriched at [Cross-Complainant's] expense." (Demurrer MPA, p. 9:1-2.) Cross-Complainant argues that "[s]hould [Cross-Defendant] be allowed to proceed with the partition as she has requested, ***she would receive a benefit*** of a windfall in the hundreds of thousands. . ." (Opposition, p. 5:19-21 [italics and boldface added].)

"The elements of an unjust enrichment claim are the 'receipt of a benefit and [the] unjust retention of the benefit at the expense of another.' " (*Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593.) "Traditionally at common law, a cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation. . . . This is the 'last element' accrual rule . . . ." (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191.) Here, this cause of action has not yet accrued because as Cross-Complainant admits in the opposition, Cross-Defendant has not yet received any benefit, which means that this claim is not ripe. None of the elements are met—Cross-Defendant has not received any benefit nor unjustly retained any benefit at the expense of another. The Court sustains Cross-Defendants' demurrer to the third cause of action for unjust enrichment with leave to amend.

#### Statute of Limitations – Entire Cross-Complaint

Cross-Defendant argues that the entire Cross-Complaint, filed September 11, 2025, is barred by the statute of limitations for an oral contract. (Demurrer MPA, p. 9; Reply, p. 7.) The statute of limitations for an oral contract is two years. (CCP § 339(1).) Cross-Defendants argue the two year period was exceeded because the alleged breach of the oral contract occurred February 25, 2023 and the Cross-Complaint was filed on September 11, 2025.

First, the statute of limitation for oral contracts cannot be applied to bar the Cross-Complaint as a whole because the Cross-Complaint also contains claims for fraud and unjust enrichment, which both carry three-year limitations periods. (CCP § 338(d).)

Second, the date of the alleged breach of the oral contract asserted by Cross-Defendant differs from what is actually plead in the Cross-Complaint. Cross-Defendant asserts that the breach of oral contract occurred in 2023 because the Cross-Complaint "alleges that on or about February 25, 2023, Purefoy in a breach of the alleged agreement, claimed fifty percent ownership in the Subject Property and demanded that Drummer obtain another mortgage and pay her the proceeds owed to her as a joint tenant owner in the Subject Property." (Demurrer MPA, p. 9:13-16, Reply, p. 7:28 - 8:2.) However, the two-year statute of limitations does not bar the breach of contract claim here because the Cross-Complaint expressly alleges that the breach of contract occurred on April 8, 2025, when Cross-Defendant filed the Complaint in instant lawsuit, rather than on February 25, 2023. (Cross-Complaint, ¶ BC-2.)

Cross-Defendant argues that "[t]he date of filing the partition action was merely additional acts of her alleged prior breach." (Reply, p. 8:4-5.) The Court disagrees. Simply asking Cross-Complainant to sell the Property and give her 50% of the proceeds is not a breach by itself. " " "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." ' ' ' (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) Here, there is not a defect on the face of the Cross-Complaint that clearly and affirmatively shows a violation of the statute of limitations.

### **Ruling on the Demurrer**

The Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

**11. 9:00 AM CASE NUMBER: C25-01064**  
**CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.**  
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**  
**FILED BY: FRANKLIN CREDIT MANAGEMENT CORP.**  
**\*TENTATIVE RULING:\***

Defendant's Hearing on Demurrer to First Amended Complaint is continued to: June 05, 2026, at 9:00 a.m.

**12. 9:00 AM CASE NUMBER: C25-02606**  
**CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: CITY OF RICHMOND**  
**\*TENTATIVE RULING:\***

The Court continues the hearing on this motion to June 5, 2026 at 9:00 a.m.

**13. 9:00 AM CASE NUMBER: MSC20-02420**  
**CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL**  
**HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION**  
**FILED BY: ANTIOCH WATER PARK**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant City of Antioch and Antioch Water Park (collectively, "Defendants")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Jayson Robinson ("Plaintiff")'s complaint for damages arising out of a drowning accident at a municipal water park. The motion relates to Plaintiff's First Amended Complaint for (1) Government Code § 815.2 (against City of Antioch) and (2) negligence (against all Defendants).

Defendants move for summary judgment or in the alternative summary adjudication on the grounds that Plaintiff's claims are barred by the assumption of risk affirmative defense.

For the following reasons, the MSJ is **denied**.

#### **Legal Standard**

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for